

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

Office of City Clerk

January 28, 2013

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 4:30 p.m. in Council Chambers for the purpose of holding a public hearing. Present were: MAYOR: Richard L. Kaysen; COUNCIL MEMBERS - Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne (arriving at 4:59 p.m.), Mr. Shanor, Mr. Valdez and Ms. Williams. Absent: Mr. Allen. Also present were: Carol Intlekofer, City Clerk, and Dan White, City Attorney. The pledge of allegiance was recited.

Mayor Kaysen opened a public hearing to receive public comment and information on violations of City ordinances and state laws pertaining to the sale of alcoholic beverages, which violations have occurred at Mingles, 1618 Stillwater Avenue, Cheyenne, Wyoming, operated by Stillwater, Inc., which holds City Retail Liquor License No. 39. Officer Steve Niesen, alcohol enforcement officer, Cheyenne Police Department, reviewed elements of the department's alcohol compliance checks program involving liquor licensees; City ordinance provisions relating to violations by licensees resulting in convictions within a 12 month period, and advised failed compliance checks conducted at Mingles bar in 2012 resulted in three convictions involving Mingles bar staff within a one-year time frame. He reported the failed compliance checks, resulting in the issuance of citations and subsequent convictions, related to alcohol service to underage individuals. Officer Niesen reviewed communications and discussions held with Owen Groshart, manager of Mingles, after the first two citations were issued to offer assistance and suggestions on what could be done to remedy the situation, noting that the third citation/conviction occurred after discussions with Mr. Groshart. Upon inquiry, Officer Niesen confirmed the dates of convictions (i.e. June 22, 2012; June 26, 2012, October 5, 2012) through municipal court involving the violations, and that the compliance check failures occurred at the bar's package store as well as the adjacent retail dispensing room portion of the building. Tanvir Dhami, member of the CLICK (traffic safety) program at Cheyenne's South High School, explained the CLICK program is dedicated to such issues as youth traffic safety; expressed concerns with the violations incurred by Mingles relative to underage drinking/driving, and stated that business operators need to be responsible and held accountable for their actions if they do not abide by the law. Lisa Ammons, Wyoming Prevention Management Organization - Laramie County, provided a "snapshot" of data on juvenile liquor violations, and reviewed issues surrounding underage drinking and drivers who are under the influence. Anthony Reyes, attorney representing Stillwater, Inc., clarified Stillwater, Inc. is not taking the convictions lightly and are willing to do whatever is needed to remedy compliance issues. He advised of Mingles' action involving the employees affiliated with the violations, and explained employee TIPS (Training for Intervention Procedures (a recognized alcohol server training program)) training that is provided, noting that Mingles is willing to provide additional training and is open to recommendations that may be offered. Upon inquiry, Mr. Reyes provided information on employer records that are retained for staff who are TIPS trained, and Owen Groshart, manager of Mingles, stated Mingles currently has 12 employees and discussed high employee turnover issues; staff duties;

security system in place; concerns with today's high quality of "fake ID's", and Mingles' door ID check policy and hand stamp process. He advised a signed statement is now required by each employee, acknowledging employment consequences if proper age identification is not requested for all customers. Upon further inquiry, he discussed TIPS training requirements, and support and assistance received by the local liquor dealers association in providing communication on issues affecting licensees.

There being no further comments or input, Mayor Kaysen advised the purpose of the public hearing had been met and closed the public hearing. There being no further business previously noted for the special meeting, Mayor Kaysen adjourned the special meeting at 5:02 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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